

25VECV02506 25VECV02506

County: los-angeles

Division: Civil Law and Motion

Department: U

Hearing date: 2026-06-30

Motion: PLAINTIFF'S MOTION TO COMPEL THE DEPOSITION OF DEFENDANT'S PERSON MOST QUALIFIED;
REQUEST FOR SANCTIONS

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Case Number: 25VECV02506 Hearing Date: June 30, 2026 Dept: U

SUPERIOR

COURT OF THE STATE OF CALIFORNIA

FOR

THE COUNTY OF LOS ANGELES - NORTHWEST DISTRICT

JORGE A. ANTUNA

GARCIA, an individual,

Plaintiff,

vs.

AMERICAN HONDA MOTOR CO., INC., a

California corporation; and DOES 1-10, inclusive,

Defendants.

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CASE NO: 25VECV02506

[TENTATIVE] ORDER RE: PLAINTIFF'S MOTION

TO COMPEL THE DEPOSITION OF DEFENDANT'S PERSON MOST QUALIFIED; REQUEST FOR
SANCTIONS

Dept. U

8:30 a.m.

June 30, 2026

I.

BACKGROUND

This case is a lemon
law action filed by Plaintiff Jorge A. Antuna Garcia against Defendant American
Honda Motor Co., Inc.

On May 5, 2025,
Plaintiff filed his complaint.

On June 12, 2025,
Defendant filed its answer to the complaint.

On June 24, 2025,
Plaintiff first sought to meet and confer with Defendant regarding taking the deposition of Defendant's person most qualified ("PMQ"). Defendant did not immediately respond. (Alemi decl., ¶ 3.)

On September 8, 2025,
Plaintiff noticed the deposition of Defendant's PMQ, with deposition set for October 8, 2025. (Alemi decl., ¶ 4.)

On October 1, 2025, Defendant served objections to the deposition notice. The parties subsequently met and conferred to find a mutually agreeable date for the deposition to take place. The parties agreed on June 4, 2026, as the deposition date despite Plaintiff's concerns that the selected date was just several months before trial. (Alemi decl., ¶¶ 5-6.)

On January 7, 2026, Plaintiff served an amended notice of deposition of Defendant's PMQ, with deposition set for June 4, 2026. (Alemi decl., ¶ 7.)

On May 28, 2026, Plaintiff received Defendant's objections to the amended deposition notice, which stated that Defendant would instead be producing its PMQ for deposition on June 5, 2026. (Alemi decl., ¶ 8.)

On May 29, 2026, Defendant informed Plaintiff that it would not be producing its PMQ for deposition on June 5, 2026, and instead offered August 24, 2026, a date just one (1) month before trial. (Alemi decl., ¶ 9.)

On June 2, 2026, Plaintiff filed a motion to compel the deposition of Defendant's PMQ.

On June 10, 2026, the Court granted Plaintiff's ex parte application for an order shortening time to hear the motion.

On June 16, 2026, Defendant filed its opposition brief.

On June 23, 2026, Plaintiff filed his reply brief.

II.

LEGAL

STANDARD

Where a would-be deponent fails to appear, proceed with, or produce documents for deposition in a duly noticed deposition notice, the noticing party may move for an order to compel said deponent's attendance, testimony, and/or production for inspection of any document described in the deposition notice. *¿* Code Civ. Proc., § 2025.450 (a).

III.

DISCUSSION

Plaintiff

moves to compel the deposition of Defendant's PMQ.

Plaintiff first noticed the deposition of Defendant's PMQ on September 8, 2025, nearly ten (10) months ago. After Plaintiff served an amended deposition notice on January 7, 2026, the parties agreed the deposition should take place on June 4, 2026. The June 4, 2026 date was agreed on despite Plaintiff's concerns that said date was only several months before the parties' FSC and trial dates.

Defendant later requested that it present its PMQ for deposition on June 5, 2026, rather than on June 4, 2026.

Defendant then requested that it present its PMQ for deposition on August 24, 2026, rather than on June 5, 2026.

Under these circumstances, Plaintiff has sufficiently attempted to meet and confer with Defendant in good faith. Given that trial in this case is set for September 28, 2026, Defendant is technically correct that a deposition conducted on August 24, 2026, would be timely under the 30-day discovery cutoff. See Code Civ. Proc., § 2024.020 (discovery shall be completed 30 days before trial). Even so, the Court agrees with Plaintiff that Defendant's repeated rescheduling and months-long delays in presenting a PMQ for deposition have been unreasonable.

Given the timeline of this case and Plaintiff's good faith efforts to depose the PMQ at an earlier date, Plaintiff should be able to take the PMQ's deposition earlier than Defendant's selected date of August 24, 2026.

The motion is granted. Defendant is ordered to produce its PMQ for deposition no later than Friday, July 31, 2026, or on another date mutually agreeable to both sides.

As to the substance of Defendant's objections to the deposition notice, the parties' primary disagreement appears to be about scheduling the deposition rather than about the objections themselves. For now, it is sufficient that the Court order the deposition to proceed. If Plaintiff takes issue with specific objections asserted during the deposition, such issues will need to be addressed by later motion. The Court strongly encourages both sides to engage in good faith during the deposition to avoid future motion practice.

As to whether to award monetary sanctions, the Court recognizes the considerable constraints likely placed on Defendant's PMQ given the volume of lemon law cases proceeding in California trial courts. Ultimately, Defendant did offer Plaintiff a deposition date within the discovery cut-off. Under these circumstances, Defendant cannot be said to have misused the discovery process, and, thus, the Court does not award of sanctions against Defendant at this time.

IV.

CONCLUSION

Plaintiff Jorge A. Antuna Garcia's motion to compel the deposition of Defendant American Honda Motor Co., Inc.'s person most qualified is GRANTED.

Defendant

American Honda Motor Co., Inc.

is ORDERED to produce its person most qualified for deposition no later than Friday, July 31, 2026, or on another date mutually agreeable to both sides.

No sanctions will issue at this time.

Plaintiff Jorge A. Antuna Garcia is ORDERED to give notice.

DATED: June 30, 2026

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Judge

of the Superior Court